

	2023-01367289	
8	Lawson v. Executive Maintenance, Inc., et al. 2019-01107756	<u>Plaintiff David Lawson’s Motion to Enforce Order and for Sanctions</u> Plaintiff David Lawson moves for an order compelling defendant Executive Maintenance, Inc. (EMI) to comply with the court’s October 16, 2024 order (ROA 65) directing EMI to produce the Class Members’ Data (as defined in plaintiff’s Statement Regarding Class Notice filed October 7, 20204 (ROA 637) to Class Counsel within 30 days of the court’s issuance of the October 16, 2024 order. For the following reasons, plaintiff’s motion is granted in part and denied in part. Civil Procedure Code section 128(a)(4) states: “Every court shall have the power to do all of the following: . . . (4) To compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein.” Civ. Proc. Code § 128(a)(4). On October 16, 2024 the court ordered the parties to provide notice to the class members “in substantially the same manner as proposed in Plaintiff’s Statement Regarding Class Notice (ROA 637).” 10/16/24 Order (ROA 650). Paragraph 1 of plaintiff’s Statement Regarding Class Notice states: “Production of Class Members’ Data. Within thirty (30) days of the Court’s Order approving the content and dissemination of class notice, Defendant Executive Maintenance, Inc. (‘Defendant’) shall provide to Class Counsel the Class Members’ Data subject to the provisions of the Protective Order.” ROA 637 at ¶ 1 (bold in original). “Class Members’ Data” is defined in the same paragraph. <i>Id.</i> As of November 20, 2024, when plaintiff filed the instant motion, EMI had not provided Class Counsel with the Class Members’ Data nor has EMI’s counsel responded to plaintiff’s counsel’s inquiry regarding the status of production. Schubert Decl. (ROA 692) ¶¶ 12-13 & Ex. 2. EMI did not file an opposition to the motion and thus has not provided any explanation for its failure to provide Class Counsel with the Class Members’ Data. EMI is ordered to comply with the court’s October 16, 2024 order by providing the Class Members’ Data to Class Counsel by <u>April 24, 2025</u>. Plaintiff seeks sanctions pursuant to Civil Procedure Code section 177.5, which states: “A judicial officer shall have the power to impose reasonable money sanctions, not to exceed fifteen hundred dollars (\$1,500), notwithstanding any other provision of law, payable to the court, for any violation of a lawful court order by a person, done without good cause or substantial justification. This power shall not apply to advocacy of counsel before the